

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARTHA ALEJANDRA BAYARDO,

Petitioner

VS.

CARLOS GERARDO BAYARDO,

Respondent

) Case Number: FDI-24-799607

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHILD CUSTODY, VISITATION, SUPPORT, BIFURCATION AND
TERMINATION OF STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Martha Bayardo (Mother) and Respondent Carlos Bayardo (Father) married on
6/6/2012 and separated on 6/7/2018, for a marriage of 6 years. The parties have one minor child,
Roberta (DOB: 12/2/2013, age 12). Mother is represented in limited scope by attorney Hector
Chinchilla. Father is self-represented.
- 2) On 2/3/2026, Mother filed the instant Request for Order asking the Court to award her sole legal
and physical custody, award Mother guideline child support, issue Mother's proposed holiday
schedule, and bifurcate and terminate the parties' marital status.
- 3) On 2/20/2026, the parties appeared for a Mandatory Settlement Conference and reached several
agreements.
- 4) On 4/7/2026, the parties appeared for a hearing on Mother's 2/3/2026 Request for Order. The
Court order the parties to attend mediation and set the matter for a continued hearing on 6/4/2026.

- 1 5) On 4/24/2026, a Judgment was entered which incorporates the parties' Marital Settlement
2 Agreement (MSA). The MSA provides in relevant part that legal and primary physical custody
3 shall be granted to Mother with a visitation schedule for Father. The MSA also provides, "As
4 regards child support, the parties have since separation, addressed this issue through an informal
5 private agreement. Unless and until a further order from the court the parties have agreed to
6 maintain the status quo." The MSA also terminates the Court's jurisdiction to award spousal
7 support to either party.
- 8 6) On 5/11/2026, a Child Custody and Visitation Stipulation and Order was entered which states that
9 Mother shall have sole legal custody and the parties shall share joint physical custody. The
10 Stipulation and Order outlines a regular and holiday visitation schedule.
- 11 7) The remaining issue set to be heard at the 6/4/2026 hearing is Mother's request for child support.
- 12 8) On 5/26/2026, Mother filed an Income and Expense Declaration. Mother states she is 54 years
13 old and has a Masters Degree in Marketing. Mother works 40 hours per week for her pet care
14 business. Mother attached a 2025 Profit and Loss Statement which shows that she earned \$88,947
15 in gross income in 2025 and paid \$48,904 in expenses (not including depreciation), for net self-
16 employment income of \$40,043, which averages out to \$3,337 per month. Mother estimates that
17 Father earns \$8,000 per month.
- 18 9) On 6/1/2026, Mother filed a declaration to which a proposed XSpouse calculation is attached,
19 which shows \$630 per month in guideline child support payable by Father based on Father's
20 earning \$6,500 per month in self-employment income and Mother earning \$1,750 per month in self-
21 employment income.
- 22 10) Per the Proof of Service filed 6/1/2026, Mother's Income and Expense Declaration and her
23 declaration filed 6/1/2026 were mailed and emailed to Father on 5/27/2026.
- 24 11) Father did not file any pleadings in response to Mother's 6/1/2026 declaration and he has not filed
25 an Income and Expense Declaration in this matter since December 2025.

26 **B. Findings and Order**

- 27 1) The Court does not have sufficient information to make a guideline child support calculation
28 given that Mother's most recent pleadings provide two different income figures for Father (with
29

no documentary support) and there is no current Income and Expense Declaration on file for Father.

- 2) The hearing on Mother's request for child support is hereby continued to **Thursday, 8/27/2026 at 9:00 AM in Dept. 404.**
- 3) At least 20 calendar days prior to the next hearing date, Father shall file and serve a fully completed Income and Expense Declaration. Father shall include as an attachment paystubs for the immediately preceding two months, a year-to-date Profit and Loss Statement or Schedule C, and a Profit and Loss Statement or Schedule C for 2025.
- 4) If Father fails to file an Income and Expense Declaration prior to the next hearing date, at least 10 calendar days prior to the next hearing date, Mother shall file a declaration to which she attaches documentary proof of her claims regarding Father's income.
- 5) Mother's attorney shall prepare the Findings and Order After Hearing.
- 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).